

Nagendra Singh v. State of U.P. (theft demand; billing officer and Clause 6.14)

Allahabad High Court · Division Bench · 24 August 2017 · WRIT - C No. - 38178 of 2017 · **Writ disposed; respondent no.3 to examine dues and consider Clause 6.14.**

HEADNOTE

On a writ challenging harassment despite alleged full payment of bills, where the recovery notice rested on alleged electricity theft, the Court did not quash the demand. It directed the consumer to approach respondent no.3, the officer empowered under the U.P. Electricity Supply Code, 2005 to look into billing grievances. If dues were found cleared, appropriate directions were to issue; if any dues remained, payment could be facilitated under Clause 6.14 in accordance with law.

FACTUAL SUMMARY

Nagendra Singh petitioned the Allahabad High Court alleging that he had paid all electricity bills and that nothing remained due, yet the respondents continued to harass him. The recovery notice on record was founded on alleged electricity theft. He relied on a 12 April 2017 judgment in Writ Petition No. 12748 of 2017 to contend that assessment had not been carried out under the U.P. Electricity Supply Code, 2005 read with the U.P. Electricity Act, 2003, and produced receipts as Annexure 1 to show deposits against billed amounts.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

billing grievance and instalment facility

HOLDING

Without deciding the theft-based recovery or the claim of full payment, the Court directed the petitioner to approach respondent no.3, the officer empowered under the 2005 Code to look into billing grievances, who shall examine the claim and pass an appropriate order. If dues are found cleared, appropriate directions shall issue; if any dues remain, respondent no.3 may facilitate payment keeping in view Clause 6.14 of the 2005 Code in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD IN FACT PAID ALL BILLED AMOUNTS AND NOTHING REMAINED DUE

Left to respondent no.3 to examine on the receipts and records. ¶ 1

NOT DECIDED — VALIDITY OF THE THEFT-BASED RECOVERY NOTICE AND OF THE ASSESSMENT UNDER THE 2005 CODE

The plea that assessment was not in accordance with the Supply Code, 2005 was not decided on merits. ¶ 1

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
Writ Petition No. 12748 of 2017 (decided 12 April 2017) Allahabad High Court			1	Referred

